

CHECKING WHETHER THE COURT ALREADY ORDERED NON-DISCLOSURE OF YOUR INFRACTION (I.C. 34-28-5-15)

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WHY YOU CHECK FIRST. In the situations I.C. 34-28-5-15 covers automatically - the person is not prosecuted, the charge is dismissed, the person is adjudged not to have committed the infraction, or an adjudication is later vacated - the statute requires the COURT to order the clerk and any case management system operator not to disclose the infraction information to non-criminal-justice organisations or individuals. The court is supposed to act on its own. So the first step is never to file anything: it is to find out whether the order was already entered, because where it was, there is nothing to file.

ONE EXCLUSION BEFORE ANYTHING ELSE. The automatic rule does not apply where prosecution was DEFERRED. A deferral, or a satisfied judgment, supports a verified petition no earlier than five years after satisfying the conditions - that is the five-year branch, not the automatic one.

THE WORKSHEET. Gather these from your own papers, then make the call described below. Nothing on these lines is written for you:

County where the infraction was handled:

.....

Cause number, if one was assigned:

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How the matter ended, and on what date (never prosecuted / dismissed / found not to have committed it / adjudication vacated / deferral completed / judgment satisfied):

.....

Was prosecution deferred, answered from your own papers:

.....

THE CALL. Ask the office of the clerk of the court where the infraction was handled whether the court entered an order under I.C. 34-28-5-15 in your cause. Write down the answer:

Answer from the records office of the court where the infraction was handled - was a non-disclosure order under I.C. 34-28-5-15 already entered in your cause:

.....

IF THE ORDER WAS ALREADY ENTERED: there is nothing to file. The order runs to the clerk and any case management system operator, restricting disclosure to non-criminal-justice organisations and individuals. Note that in Indiana, record relief restricts access to the records; it does not remove them.

IF NO ORDER WAS ENTERED, OR YOUR SITUATION IS A DEFERRAL OR SATISFIED JUDGMENT: the statute provides a verified petition, with these recorded features - it is filed under the

original cause number, or as an MC case type where none was assigned, in the court where the charges were brought or the trial was held; there is no fee; it is served on the prosecuting attorney, who has thirty days to file a notice in opposition; and the earliest filing dates are: found not to have committed it - 30 days after judgment; vacatur final or certified - 365 days; conduct not prosecuted - 2 years after the conduct; dismissal with no new action filed - 30 days after dismissal; deferral or judgment satisfied - 5 years.

WHY THE PETITION IS NOT IN THIS PACKET. Whether a statewide form exists for an I.C. 34-28-5-15 petition, and how counties handle the MC case-type assignment where no cause number was assigned, are open questions this family's own records carry as release gates - and those records direct that the petition stays undrafted until they close. A petition drafted around an unconfirmed county convention risks being rejected at the counter, which is worse than telling you the truth: the petition is not here yet. Ask the clerk of the court where the infraction was handled what they require for an I.C. 34-28-5-15 petition, or take this packet to a lawyer or legal-aid office to have the petition prepared.

WHEN TO STOP AND GET HELP INSTEAD:

- the prosecuting attorney files a notice in opposition;
- the court sets a hearing;
- prosecution was deferred and the five-year clock has not run;
- the county's MC case-type handling is unclear.

Routes: obligation:unit:IN:in_infraction_nondisclosure:in_infraction_nondisclosure-stage-1 ;
obligation:unit:IN:in_infraction_nondisclosure:in_infraction_nondisclosure-stage-2